

Stage 2: Section 8 Court & Possession Pack Case Summary — Stage 2 Court & Possession

READY FOR COURT - CLAIM FILE ALIGNED

Carry the case into court without breaking the file

This pack builds a possession claim using the selected grounds and arrears evidence and evidence for each ground without breaking on inconsistency.

Case ID: qa-complete-electronic-001 | **Jurisdiction:** england | **Generated:** 31 May 2026

Most possession cases fail on notice, service, evidence, or consistency errors. Keep the arrears evidence and evidence for each ground aligned as the case moves forward.

Eviction journey

Stage 2 carries the same case from the notice timeline into the court claim and hearing path.



Serve Notice FOUNDATION

Prepare and serve the Section 8 notice correctly



Notice Expires TIMING CHECK

Wait for the notice period to end before action



Issue Claim CURRENT STAGE

Submit possession claim to the court



Court Hearing NEXT

Present your case and evidence to the judge

PROPERTY

16 Willow Mews York YO24 3HX

TENANT

Ivy Carleton

GROUND

Ground 8 (mandatory), Ground 10 (discretionary)

ARREARS

£4800.00

NOTICE SERVED

6 March 2026

NOTICE EXPIRY DATE

6 April 2026

EARLIEST PROCEEDINGS DATE

6 April 2026

CLAIMANT

Daniel Mercer

Dates used in this pack

These are the service and notice dates used across the documents.

DEEMED SERVICE DATE USED

9 March 2026

NOTICE EXPIRY DATE

6 April 2026

EARLIEST PROCEEDINGS DATE

6 April 2026

TOTAL ARREARS

£4800.00

GROUND 8 THRESHOLD

£3600.00

GROUND 8 STATUS

ABOVE

- **passed:** Arrears total aligned at £4800.00.
- **passed:** Minimum notice period is satisfied from deemed service (9 March 2026).
- **passed:** Ground 8 threshold is satisfied above £3600.00.
- **passed:** No cross-document conflicts were detected against the recalculated court-pack values.

What this pack does

- Builds a possession claim that can be issued and relied on in court without breaking on inconsistency.
- Carries the served notice, claim forms, service record, and arrears evidence and evidence for each ground in one continuous case file.
- Reduces the risk of delay, contradiction, or avoidable challenge in court.

Next step

Prepare and issue the possession claim using the forms and guidance in this pack once the claim is eligible on or after 6 April 2026.

Court: York County Court and Family Court

Rent due: 1st day of each month

Arrears at notice date: £4800.00

GROUND 8 WARNING

Ground 8 arrears threshold stays live throughout the case

Ground 8 must usually be satisfied at both the notice stage and the hearing. If payments reduce arrears below the threshold, the mandatory ground may fail and the claim may depend on discretionary grounds.

Action: Update the arrears schedule to the latest practicable date and keep the grounds position under review.

Case Risks & Compliance

OK

No immediate blocker found from the answers provided

The checks we can run from your answers do not show an immediate blocker, but the file should stay under review as facts change.

Action: Keep the notice, service, and evidence file aligned as the case progresses.

Compliance Snapshot

DEPOSIT COMPLIANCE RECORDED

OK

Deposit protection and prescribed information are recorded with TDS on 15 January 2024.

Action: Retain the scheme certificate and prescribed information record with the case file.

GAS SAFETY EVIDENCE RECORDED

OK

Gas safety evidence is recorded on 10 January 2024.

Action: Keep the gas safety record with the notice and court file.

EPC RECORD RECORDED

OK

EPC evidence is recorded.

Action: Retain the EPC record with the case file.

HOW TO RENT RECORD RECORDED

OK

How to Rent service is recorded on 15 January 2024.

Action: Keep the service record with the tenancy file.

NOTICE TIMELINE RECORDED

OK

Notice served on 6 March 2026 with earliest proceedings date 6 April 2026.

Action: Keep the service date, expiry date, and proceedings date aligned across the notice, N215, and any court papers.

Case Context

The claimant seeks possession of 16 Willow Mews York YO24 3HX relying on Ground 8 (Rent arrears), Ground 10 (Any rent arrears).

The tenancy began on 1 June 2024. The contractual rent is £1,200.00 payable monthly on the 1st day of each rental period.

Ground 8 is relied on as the serious rent arrears ground.

At the date of service of the Form 3A notice on 6 March 2026, the arrears stood at £4,800.00.

That figure exceeds the statutory Ground 8 threshold of £3,600.00 (3 months).

The rent account and arrears schedule show the unpaid or short-paid periods between 1 December 2025 and 31 March 2026, 4 missed payments.

Ground 10 is relied on because rent lawfully due was unpaid when the notice was served and remains part of the claim history.

The arrears balance relied on for Ground 10 is £4,800.00.

The arrears history, service chronology, and any further tenancy concerns should be read together as one possession case, while each ground is still explained clearly on its own.

Form 3A notice served on 6 March 2026, expiring on 6 April 2026, with proceedings not intended before 6 April 2026.

Procedural Notes

The rent account first shows an unpaid or short-paid period from 1 December 2025. The most recent affected rental period is 1 March 2026. The current arrears total is £4,800.00 across 4 missed or short-paid rental periods.

The Form 3A notice service milestone currently recorded is 6 March 2026. The possession / proceedings date currently recorded in the file is 6 April 2026.

Defendant Circumstances

The claimant understands the defendant's circumstances to be as follows: The defendant has acknowledged the arrears but has not offered a sustainable repayment plan.

Financial Position

The claimant seeks possession and, if the court thinks fit, judgment for rent arrears currently quantified at £4,800.00.

The contractual rent is £1,200.00 payable monthly.

Form 3A notice served on 6 March 2026, expiring on 6 April 2026, with proceedings not intended before 6 April 2026.